

Open letter to the Prosecutor General in Iran

2009-03-06 • UHG • Nationale Geistige Räte

THE UNIVERSAL HOUSE OF JUSTICE

6 March 2009

To all National Spiritual Assemblies

Dear Bahá'í Friends,

The Universal House of Justice has directed us to apprise you of the following recent developments in the Cradle of the Faith.

On 15 February 2009, Ayatollah Qorban-Ali Dorri-Najafabadi, the Prosecutor General of the Islamic Republic of Iran, declared illegal the ad hoc arrangements that tend to the spiritual and social affairs of the Bahá'í community of Iran. In response, the Yárán from their prison cell have stated that if the current arrangements for administering the affairs of the Bahá'í community are no longer acceptable to the government, to bring them to a close would not present a major obstacle. They have indicated that this is to further demonstrate the goodwill that the Bahá'ís have consistently shown to the government of the Islamic Republic for the past thirty years. The House of Justice agreed with the wisdom of the proposed approach. Consequently, the Yárán and the Khádimín are now bringing to a close their collective functioning.

On 4 March 2009, the Bahá'í International Community addressed an open letter to the Prosecutor General, relaying to him its perspectives on this deplorable action against the Bahá'ís in Iran. The communication has also been posted on its Web site at www.bic.org and is enclosed herewith in both its Persian and English versions.

Notwithstanding the gravity of the accusations levelled against them, the steps being taken by the Yárán and the Khádimín to bring to a close their functioning should not cause undue concern. There are many ways for the friends to arrange their affairs informally, and there is no doubt that the valiant Bahá'ís of Iran will continue to manage the spiritual life of their community and, to the extent possible, contribute to the advancement of their nation. What must be borne in mind, however, is that these actions by the authorities are but the most recent manifestations of a systematic campaign of persecution that aims at the eradication of the Bahá'í community as a viable entity in the land of its birth. In recent years, the harassment and ill-treatment of our fellow believers in Iran have reached new levels of intensity as certain elements historically hostile towards the Cause have assumed growing influence in the affairs of the country.

We call on you to invite the believers in your community to join you, during these spiritually charged days of the Fast, in offering prayers for the protection of their brothers and sisters in Iran. You are free to share the foregoing information and the enclosed communication with the Bahá'ís throughout your country, reassuring them that Bahá'í institutions and selected individuals are undertaking wide-ranging and concerted efforts to defend the friends in Iran. The enclosures may also be shared with others, as you deem appropriate. Should the House of Justice wish you to take additional action, such a request will be conveyed to you separately.

The heroic steadfastness of the Bahá'ís in the Cradle of the Faith has released mighty spiritual forces into the world. It has, too, evoked the highest admiration of the believers across the globe, whose yearning to alleviate the tribulations of their Bahá'í sisters and brothers in Iran is deeply felt and lovingly acknowledged

by the House of Justice. What all must realize is that this longing may best be expressed through single-minded dedication to the prosecution of the Five Year Plan. May every follower of the Blessed Beauty seize the opportunities that present themselves for the advancement of the Cause, confident that the victories won will bring abiding joy to the members of the long-suffering, renowned community in His native land.

With loving Bahá'í greetings,

Department of the Secretariat

Open letter to the Prosecutor General in Iran

4 March 2009

Ayatollah Qorban-Ali Dorri-Najafabadi Prosecutor General

Islamic Republic of Iran

Your Honor,

Your recent announcement regarding the administrative affairs of the Bahá'ís of Iran has brought to the arena of public debate issues which not only affect the safety and livelihood of the members of that community but also have profound implications for the future of every citizen of that esteemed nation. The steps that have been taken to formulate the response of the Iranian Bahá'í community to your announcement have surely been communicated to you. The Yaran and the Khademin, the small groups that have been attending to the spiritual and social needs of the several hundred thousand Bahá'ís of Iran, the former at the national level and the latter at the local, have expressed their willingness to bring to a close their collective functioning. This decision has been made for no other reason than to demonstrate yet again the goodwill that the Bahá'ís have consistently shown to the government of the Islamic Republic of Iran for the past thirty years.

The Universal House of Justice has assured us that the disruption in the functioning of these groups need not be seen as a cause for concern. There is no doubt in the minds of millions of Bahá'ís residing in virtually every country around the world—nor in the minds of many others who are watching these events with impartiality and who are aware of the historical development of the Faith—that the Bahá'ís in Iran will find ways of managing the spiritual life of their community, as they have done for generations over the past one hundred and sixty-five years of persecution. However, given the gravity of the accusations leveled against the Yaran and the Khademin, we feel obliged, as the representatives at the United Nations of one hundred and seventy-nine National Spiritual Assemblies encircling the globe, to bring certain fundamental points to your attention in an open letter and request that you examine them with the sense of fairness they deserve.

In reference to Article 20 of the Constitution of the Islamic Republic of Iran pertaining to the rights of its citizens, as well as Article 23 related to freedom of belief, you have stated: “Adherence to a principle or belief is free [to anyone], but to openly express and proclaim it in order to cause deviation in the thoughts of others, to manipulate, pretend, disseminate [ideas], and otherwise attempt to deceive and confuse people will not be permissible.” Such a statement tests credulity to an extreme. It is widely recognized that similar statements have been used by repressive regimes throughout the centuries to justify the arbitrary suppression of conscience and belief. The suggestion that it is possible to separate the convictions held by an individual from their expression in words and action begins an entirely false line of reasoning. To see its absurdity one need only ask oneself what it means to have faith if it is not consciously manifested in one's relationships with others. Qualifying the argument by implying that only those expressions of belief which cause deviation in the thoughts of others are objectionable may appear reasonable at a first glance. In

reality, of course, it is a means of granting license to those in authority to suppress whomsoever they wish, for it leaves open the possibility of labeling any action or comment not to their liking as a cause of deviation in the thoughts of others. In any event, the record of the Bahá'ís of Iran is clear in this respect. They have never sought to cause such deviation, nor have they ever attempted to deceive and confuse people. Since you have raised the issue of freedom of belief in the context of the articles pertaining to the rights of Iranian citizens, knowing full well the Bahá'í record, we can only assume that you have made curtailment in the functioning of the Yaran and the Khademin a condition for according the Bahá'ís at least some of the rights which they have been denied for some thirty years now.

The facts of the matter are, of course, well known to you:

Following the Islamic revolution in 1979, the Bahá'ís of Iran, who had long been the victims of periodic outbreaks of violence, the later rounds of which had been instigated by the notorious SAVAK, were subjected to a fresh wave of persecution.

In August 1980 all nine members of the National Spiritual Assembly of the Bahá'ís of Iran—a national council whose election and functioning are prescribed in the Bahá'í teachings and which forms part of the Bahá'í administrative structure in all countries—were abducted and disappeared without a trace. Undoubtedly they were executed.

Members subsequently elected to this council, as well as scores of individuals with influence in the Bahá'í community, including several members of Local Spiritual Assemblies—councils operating at the local level—were executed by the government in the years immediately after.

In response to the announcement made by the Prosecutor General of Iran in 1983 calling for the dismantling of the Bahá'í administrative structure, the National Spiritual Assembly of Iran dissolved itself and the rest of the administrative structure in the country as a demonstration of goodwill towards the government.

Subsequently, ad hoc arrangements were made to tend to the spiritual and social needs of the 300,000 Bahá'ís in Iran through the formation of the Yaran at the national level and the Khademin at the local level.

For some twenty years, government agencies had regular contact with the Yaran and the Khademin—some times friendly and other times in the form of unreasonably long and aggressive interrogations—consulted with their members and were entirely aware of their activities. The possibility of some degree of dialogue between the Bahá'ís and government agencies seemed to be emerging.

During that same period, however, a 1991 memorandum signed by Hujjatu'l Islam Seyyed Mohammad Golpaygani, then Secretary of the Iranian Supreme Revolutionary Cultural Council, came to light. It called for the “progress and development” of the Bahá'ís in Iran to be “blocked” through a number of specific measures it advocated and for a plan “to confront and destroy their cultural roots outside the country.”

While the harassment and ill-treatment of Bahá'ís continued uninterrupted during this period, they have been taken to new levels of intensity in recent years as certain elements that have historically been bent on the destruction of the Bahá'í community have assumed growing influence in the affairs of the country.

The official campaign to malign the name of the Faith through the mass media—through newspaper articles and Web sites, through radio and television programs and films—escalated around 2005; it has proceeded unabated to this day. There can be little doubt that systematic steps are being taken to implement the provisions set out in the 1991 memorandum.

In March 2006 a confidential letter from the Iranian military headquarters, dated 29 October 2005, asking various intelligence agencies and police organizations, in addition to the Revolutionary Guard, to identify and monitor Bahá'ís around the country, came to the attention of the UN Special Rapporteur on freedom of religion or belief, raising great concern throughout the world for the safety of the Bahá'ís.

For more than two decades young Bahá'ís were barred from entering university through an application process that would require them to deny their faith. Though a modification in the process, achieved through worldwide public pressure, enabled a few hundred to register at the start of the 2006–2007 academic year, their hopes of pursuing higher education were soon dashed. That same year the Ministry of Science, Research and Technology issued a letter to eighty-one universities, instructing them to expel any student known to be a Bahá'í.

The abovementioned letter was followed by another in April 2007 from the Public Intelligence and Security Force restricting the involvement of Bahá'ís, already barred from employment in the public sector, in some twenty types of businesses. The document reinforced ongoing efforts to strangle the economic life of the Bahá'í community.

In these past few years, the number of Bahá'ís arrested without cause has climbed; the confiscation of Bahá'í personal property has grown; attacks on Bahá'í homes have escalated; acts of arson against Bahá'í properties have proliferated; the desecration and destruction of Bahá'í cemeteries have spread; the sealing of shops owned by Bahá'ís has increased; refusals of bank loans and business licenses to Bahá'ís have multiplied; harassment of landlords with Bahá'í tenants has intensified; threats against fellow citizens who associate with Bahá'ís have mounted; and the vilification of Bahá'í children in their classrooms by teachers has been on the rise. That such acts are being systematically orchestrated city by city is unquestionable.

Then last year the seven members of the Yaran were imprisoned, one of them in March and the remaining six in May. For some time they were held in solitary confinement and denied access to their families. Although eventually family members were allowed brief visits under strict observation, the prisoners have yet to be given access to legal counsel. The conditions of their incarceration have varied in degree of severity over the course of the past several months, with the five male members confined at one time to a cell no more than ten square meters in size, with no bed.

Finally, after some nine months of imprisonment, during which time not a shred of evidence could be found linking the members of the Yaran to any wrongdoing, they were accused of “espionage for Israel, insulting religious sanctities and propaganda against the Islamic Republic,” and it has been announced that their case will soon be submitted to court with a request for indictment.

This announcement was followed almost immediately by news reports which indicated that you had written to the Minister of Intelligence stating that the existence of the Yaran and the Khademin in Iran is illegal, while at the same time raising the question of the constitutional right of Iranian citizens to freedom of belief. You then made an official announcement to this effect.

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Your Honor, the events of recent years and the nature of the accusations made raise questions in the mind of every unbiased observer as to the intent behind the systematic perpetration of injustice against the Bahá'ís of Iran. Even if there might have been some misunderstandings about the motives of the Bahá'í community during the early turbulent days of the revolution, how can such suspicions persist today? Can it be that any member of the esteemed government of Iran truly believes the false accusations which have been perpetuated about the

Bahá'ís in that country? Are not the following facts well known to the authorities in the various branches of the government?

In whatever country they reside, Bahá'ís strive to promote the welfare of society. They are enjoined to work alongside their compatriots in fostering fellowship and unity and in establishing peace and justice. They seek to uphold their own rights, as well as the rights of others, through whatever legal means are available to them, conducting themselves at all times with honesty and integrity. They eschew conflict and dissension. They avoid contest for worldly power.

It is a fundamental principle of the Bahá'í Faith that its followers strictly refrain from involvement in any partisan political activity, whether local, national or international. Bahá'ís view government as a system for maintaining the welfare and orderly progress of human society, and obedience to the laws of the land is a distinguishing feature of their beliefs.

To take any action in willful violation of allegiance to one's own country is explicitly proscribed in the Scriptures of the Bahá'í Faith. Adherence to this principle has been amply demonstrated by Bahá'ís everywhere.

The Bahá'í administrative structure, which is established in more than one hundred and eighty countries worldwide, is a means for channeling the energies of Bahá'ís in service to the common good and for organizing the religious and social affairs of the Bahá'í community itself. For Bahá'ís, the concept does not imply in any way the existence of a political agenda or any kind of interference in the affairs of the government.

The international headquarters of the Bahá'í Faith is located within the borders of modern-day Israel as a result of the successive banishments imposed on Bahá'u'lláh in the mid-nineteenth century by the Persian and Ottoman governments. Exiled from His native Persia, Bahá'u'lláh was sent to Baghdad, Constantinople and Adrianople and finally to the fortress-city of Acre in 1868, eighty years prior to the establishment of the State of Israel, where He eventually died in 1892. That Bahá'ís in all parts of the world are today in contact with the international headquarters of their Faith regarding their individual and collective affairs is entirely natural and is a well-established fact.

Bahá'ís have the highest respect for all religions. Our Writings refer to Islam as “the blessed and luminous religion of God” and the Prophet Muhammad as “the refulgent lamp of supreme Prophethood,” “the Lord of creation” and “the Day-star of the world,” Who, “through the will of God, shone forth from the horizon of Hijaz.” The station of Imam Ali is described in terms such as “the moon of the heaven of knowledge and understanding” and “the sovereign of the court of knowledge and wisdom.” In the Tablet of Visitation revealed by Bahá'u'lláh Himself for Imam Husayn, He refers to him as “the pride of the martyrs” and “the day-star of renunciation shining above the horizon of creation.”

Bahá'ís are exhorted to evince a high sense of moral rectitude in their activities, chastity in their individual lives, and complete freedom from prejudice in their dealings with people of every race, class and creed.

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In light of these well-established facts, Your Honor, it is difficult to understand how words such as “manipulative” and “deceitful,” “dangerous” and “threatening,” can be applied to Bahá'í activity in Iran. Do you consider dangerous the efforts of a group of young people who, out of a sense of obligation to their fellow citizens, work with youngsters from families of little means to improve their mathematics and language skills and to develop their abilities to play a constructive part in the progress of their nation? Is it a threat to society for Bahá'ís to discuss with their neighbors noble and high-minded ideals, reinforcing the conviction that the betterment of the world is to be achieved through pure and goodly deeds and through

commendable and seemly conduct? In what way is it manipulative for a couple to speak in the privacy of their home with a few friends confused by the portrayal of Bahá'ís in the mass media and to share with them the true nature of their beliefs, which revolve around such fundamental verities as the oneness of God and the oneness of humankind? What duplicity is there if a child at school, after listening to offensive language about the Founder of her Faith Whom she so loves, politely raises her hand and requests permission to explain to her classmates some of the teachings she follows? What deceit is there if a young person, committed to the acquisition of knowledge and learning, seeks the right from the authorities to enter university without having to lie about his faith? What harm is done if several families gather together periodically for communal worship and for the discussion of matters of concern to them all? Given that the human soul has no sex, is it so alarming for someone to express the view that men and women are equal in the sight of God and should be able to work shoulder to shoulder in all fields of human endeavor? And is it so unreasonable for a small group of people, in the absence of the administrative structures prescribed in their teachings, to facilitate the marriage of young couples, the education of children and the burial of the dead in conformity with the tenets of their Faith?

These are but a few examples of the various endeavors for which the Bahá'ís of Iran are being so grievously persecuted. It is the right to engage in such activity that has been denied them for thirty years.

Your Honor, many times over these twenty years the Yaran and the Khademin have been told by government officials that they are in fact protecting the Bahá'í community from those who regard its members as a negative element in society. It is true that there may be a small fraction in any populace who, succumbing to the forces of hatred and enmity, can be incited to perform acts of cruelty and oppression. But, in the main, our vision of the Iranian people does not correspond with the one projected by such officials. Narrow-mindedness and pettiness are not the qualities that we attribute to them. Rather do we see the staunch commitment to justice evinced by the citizens of one town who petitioned the government when several shops owned by Bahá'ís were closed without reason. We see the fidelity shown by the young musicians who refused to perform when their Bahá'í counterparts were prohibited from playing in a recital. We see the courage and tenacity of university students who stood ready to prepare a petition and to forgo participation in examinations that their Bahá'í classmates were barred from taking. We see the compassion and generosity of spirit exhibited by the neighbors of one family, whose home was attacked with a bulldozer, in their expressions of sympathy and support, offered at all hours of the night, and in their appeals for justice and recompense. And we hear in the voices raised by so many Iranians in defense of their Bahá'í compatriots echoes from their country's glorious past. What we cannot help noting, with much gratitude towards them in our hearts, is that a majority of those coming out in support of the beleaguered Bahá'í community are themselves suffering similar oppression as students and academics, as journalists and social activists, as artists and poets, as progressive thinkers and proponents of women's rights, and even as ordinary citizens.

Your Honor, the decisions to be taken by the judiciary in Iran in the coming days will have implications that extend well beyond the Bahá'í community in that land—what is at stake is the very cause of the freedom of conscience for all the peoples of your nation. It is our hope that, for the sanctity of Islam and the honor of Iran, the judiciary will be fair in its judgment.

Respectfully,

Bahá'í International Community

[signed: The Universal House of Justice]